

Instructions for Notice of Hearing on Motion

ND Legal Self Help Center Staff and Court employees can't help you fill out forms, or create documents for you. If you're unsure how to proceed, consult a lawyer.

ND Legal Self Help Forms aren't official forms. Judges and courts aren't required to accept them. There's no guarantee Center forms will be accepted. Use at your own risk.

Don't include these instruction sheets when you serve or file the completed form.

If you made the motion, go to [Making a Motion in a District Court Civil Action](#) for additional information and resources.

If you need to answer the motion, go to [Answering a Motion in a District Court Civil Action](#) for additional information and resources.

Who May Use this Form?

A **Moving Party** or an **Opposing Party in the Motion** may use these forms to request oral arguments or an evidentiary hearing on the motion.

- A **Moving Party** is the party who brings the Motion. The Moving Party can be either the Plaintiff or the Defendant in the civil case.
- An **Opposing Party** is the party who doesn't bring the Motion, and must answer the Motion. The Opposing Party can be either the Plaintiff or the Defendant in the civil case.

Important! You **can't** request oral arguments or an evidentiary hearing until **after** you serve and file a written brief.

- When the **Moving Party** serves and files their Motion documents, one of the documents **must** be a **Brief in Support of Motion**.
- When the **Opposing Party** serves and files their Answer to Motion documents, one of the documents **must** be an **Answer Brief**. The Answer to Motion must be served and filed within 14 days after they were served the Motion.
 - If the Motion was served on the Opposing Party by mail, add 3 more calendar days to 14-day deadline.

What Are Oral Arguments and What is an Evidentiary Hearing?

You may request two different types of hearings on the motion. You may request either oral arguments, an evidentiary hearing, or both.

- **Oral arguments** are spoken statements by each party to defend their legal position. Oral arguments are limited to the legal reasons each party included in their written Brief in Support of Motion or Answer Brief to Motion.
 - The parties **can't** present evidence at the hearing.
- **An evidentiary hearing**, also called presenting evidence, involves each party giving evidence, such as witness testimony and documents, to the judge or judicial referee during the hearing.
 - Each party attending the hearing has the chance to challenge evidence presented by the other party or parties.

How Long Do I Have to Request Oral Arguments or an Evidentiary Hearing?

You must make your request within 7 days after the time expires for filing the Answer Brief.

On a calendar, find the date the Opposing Party was served the motion documents.

- If the Opposing Party was served by U.S. Mail, the service date is the day the documents went into the mailbox, or the date of the postmark stamped on the mailing envelope.
- If the Opposing Party was served by personal service or office service, the service date is the day the documents were handed to the Opposing Party, or left at their office.
- Starting with the day **after** the service date, count forward 14 or 17 calendar days.
 - Count 14 calendar days if the Opposing Party **wasn't** served by U.S. Mail.
 - Count 17 calendar days if the Opposing Party **was** served by U.S. Mail.
- If the 14th or 17th day lands on a Saturday, Sunday, or N.D. State Holiday, move forward to the next day that **isn't** a Saturday, Sunday, or N.D. State Holiday.
- **This is the date the Opposing Party's answer brief and supporting documents are due.**

Then, starting with the day **after** the due date of the answer brief, count forward 7 calendar days.

- If the 7th day lands on a Saturday, Sunday, or N.D. State Holiday, move forward to the next day that **isn't** a Saturday, Sunday, or N.D. State Holiday.
- **This is the last day you're allowed to request a hearing.**

After I Request Oral Arguments or an Evidentiary Hearing, How Long Do I Have to Schedule a Date and Time for the Hearing?

You have 14 calendar days after your request to schedule a date and time for oral arguments or the evidentiary hearing.

If you miss the deadline, no hearing is held. Your hearing request is cancelled and the judge or judicial referee decides your motion based on the documents filed by the parties.

How Long Do I Have to Serve the Notice of Oral Arguments or the Evidentiary Hearing?

Oral Arguments – as soon as possible.

Rule 3.2 of the North Dakota Rules of Court doesn't give a specific deadline.

Serve the Notice of Hearing on Motion on all other parties as soon as you can. If you don't give the other parties enough time to prepare, the judge or judicial referee may reschedule the hearing, or decide not to hold the hearing.

Evidentiary Hearing – Must be served at least 21 calendar days before the date scheduled for the hearing.

If you schedule an evidentiary hearing and plan to serve the Notice of Hearing by U.S. Mail, add 3 more calendar days. You must serve the Notice at least 24 calendar days before the date scheduled for the hearing.

If you can't prove you served the Notice of Hearing at least 21 or 24 calendar days before the date of the evidentiary hearing, the judge or judicial referee may reschedule the hearing, or decide not to hold the hearing.

On a calendar, find the date of the evidentiary hearing.

- Starting with the day **before** the date of the evidentiary hearing, count **backward** 21 or 24 calendar days.
 - Count 21 calendar days if you **don't** plan to serve the Notice by U.S. Mail.
 - Count 24 calendar days if you plan to serve the Notice by U.S. Mail.
- If the 21st or 24th day lands on a Saturday, Sunday, or N.D. State Holiday, move **backward** to the next day that **isn't** a Saturday, Sunday, or N.D. State Holiday.
- **This is the date by which you Must serve the Notice of Hearing on all other parties.**

Step One

Serve and File the Request for Hearing on Motion; Schedule Date and Time for Hearing.

☐ Complete the Request for Hearing on Motion Form:

- **Top of Form (Caption):**
 - Look at the top (Caption) of the Notice of Motion document.
 - Fill in the **same** North Dakota county and Judicial District names as the top (caption) of the Notice of Motion.
 - Fill in the **same** Plaintiff(s) and Defendant(s) as the top (caption).
 - Fill in the case number.
 - Fill in the name of the Motion on the line under “**Request for Hearing on Motion to/for.**”
- **Paragraph 1:** Read carefully.
 - If you’re the party who brought the Motion, check ☒ “Moving Party”.
 - If you’re the party who didn’t bring the Motion, check ☒ “Opposing Party”.
- **Paragraph 2:** Read carefully. If you didn’t serve and file a brief, **Stop!** You can’t request a hearing.
 - If you’re the Moving Party, check ☒ “Brief in Support of Motion”.
 - If you’re the Opposing Party, check ☒ “Answer Brief”.
- **Paragraph 3:** Read carefully. If you missed the deadline to request a hearing, **Stop!** You can’t request a hearing.
- **Paragraph 4:** You must check ☒ at least one box.
- **Date and Signature:** Date and sign the Request for Hearing on Motion.

☐ Make Copies of the Completed Request for Hearing on Motion:

- Make one copy for your records.
- Make one copy to be served on each party.

☐ **Serve a Copy of the Completed Request for Hearing on Motion:**

- The person serving by mail must be at least 18 years old.
- For each party you serve, put a copy in an envelope and address the envelope with the party's name and **last reasonably ascertainable address**.
 - If you know the party is currently represented by a lawyer for this motion, address the envelope with the lawyer's address, **not** the party's.
- List your address as the return address on the envelope.
- Put the correct first-class U.S. postage on the envelope. **Postage must be prepaid.**
- Put the envelope in the U.S. Mail.
- Service by mail is complete upon mailing.

☐ **Complete the Declaration of Service by Mail for the Request for Hearing on Motion:**

The person who served the Request for Hearing on Motion completes this form. If the envelope is mailed at a U.S. Post Office, the Post Office employee **doesn't** complete this form.

This is your **required** written proof of service. A hearing won't be scheduled until you prove the parties were served a copy of the Request for Hearing on Motion.

- **Top of Form (Caption):** Fill in the caption exactly as you filled in the caption on your Request for Hearing on Motion form.
- **Paragraphs 1 through 6:** Review and complete these paragraphs.
 - In Paragraph 2, fill in the name of the motion **exactly** as you filled in the caption on your Request for Hearing on Motion form.
- **Date and Signature:**
 - Fill in the date you sign the Declaration.
 - Fill in the city, county, state, and country where you sign the Declaration.
 - Sign the Declaration and complete the lines after your signature.

☐ **File the Request for Hearing on Motion and Proof of Service with the Clerk of Court:**

Take or mail the completed originals of the following:

- Request for Hearing on Motion; and
- Declaration of Service for each party you served

to the Clerk of Court in the [North Dakota county](#) where the Motion is filed.

☐ **Schedule the Hearing:**

Ask the Clerk of Court how to schedule the hearing and follow their directions.

Important! You must schedule a date and time for the evidentiary hearing no later than 14 calendar days after your request. (See Pages 2-3.)

Step Two

Serve and File the Notice of Hearing on Motion.

☐ **Complete the Notice of Hearing on Motion Form:**

- **Top of Form (Caption):** Fill in the caption exactly as you filled in the caption on your Request for Hearing on Motion form.
- **To:** List the full name(s) of the parties. **Don't** include yourself.
- **Paragraph 1:** You must check ☒ the same box or boxes you checked in Paragraph 4 of your Request for Hearing on Motion form.
- **Paragraph 2:**
 - Fill in the name of the judge or judicial referee who is presiding over the hearing on the motion. **If you don't know, contact the Clerk of Court and ask.** Check ☒ the appropriate box.
 - Fill in the date and time of the hearing.
 - Check ☒ the 1st box if the hearing will be held by Zoom. Fill in all of the details on how to attend the Zoom hearing.
 - Check ☒ the 2nd box if the hearing will be held at the Courthouse. Fill in the physical address of the Courthouse and the Room Number.
- **Date and Signature:** Date and sign the Notice of Hearing on Motion.

☐ **Make Copies of the Completed Notice of Hearing on Motion:**

- Make one copy for your records.
- Make one copy to be served on each party.

☐ **Serve a Copy of the Completed Notice of Hearing:**

- Follow the instructions for service in Step One.

☐ **Complete the Declaration of Service by Mail for the Notice of Hearing on Motion:**

The person who served the Notice of Hearing on Motion completes this form. If the envelope is mailed at a U.S. Post Office, the Post Office employee **doesn't** complete this form.

This is your **required** written proof of service. The hearing won't be held until you prove the parties were served a copy of the Notice of Hearing on Motion.

- Follow the instructions for completing the Declaration of Service in Step One.

☐ **File the Notice of Hearing on Motion and Proof of Service with the Clerk of Court:**

Take or mail the completed originals of the following:

- Notice of Hearing on Motion; and
- Declaration of Service for each party you served

to the Clerk of Court in the [North Dakota county](#) where the Motion is filed.

Step Three

Prepare for the Hearing on the Motion.

Representing yourself effectively at a hearing on a motion requires a lot of research and preparation. People representing themselves are required to follow the same laws, rules, and procedures as lawyers, even if they don't know and understand the laws, rules, and procedures.

Prepare for Oral Arguments:

Know your motion, or answer to motion, documents and know each party's motion, or answer to motion, documents. You and the other party or parties are only allowed to argue the legal issues in your motion, or answer to motion, documents.

Oral arguments give each party the chance to:

- Explain and highlight key legal points from their written briefs;
- Respond to the other party's legal points; and
- Respond to questions from the judge or judicial referee about their legal points.

Make copies of the documents you served and filed and the documents each party served and filed for the motion.

You need to be ready to answer questions from the judge or judicial referee about the information you included in your motion, or answer to motion, documents.

You also need to be ready to respond to arguments made by the other party or parties in their motion, or answer to motion, documents.

Know the laws and rules of the motion. Look through your documents and the documents served and filed by each party. Research the laws and rules listed in the documents.

- **North Dakota Century Code (N.D.C.C.)** – the laws enacted through the North Dakota legislative process. ndlegis.gov/general-information/north-dakota-century-code/index.html
- **North Dakota Case Law** – North Dakota Supreme Court opinions that courts deciding similar cases with similar facts are required to follow. ndcourts.gov/supreme-court/opinions
- **North Dakota Court Rules** – the rules enacted by the North Dakota Supreme Court that govern how court cases make their way to court and how the case is conducted. ndcourts.gov/legal-resources/rules

Organize your notes, outline of your oral argument, and other documents you plan to bring with you. You're allowed to bring notes, copies of laws and rules, and copies of the documents served and filed for the motion.

You may want to organize the documents you plan to take to the hearing so you can find individual documents quickly.

To make a convincing oral argument, you need to tie the facts to the laws and rules to make a convincing oral argument to the judge or judicial referee.

This is a difficult task, but laws, rules, and facts included in the motion and answer to motion documents will help you.

Practice your argument so you're familiar with the information.

Prepare for an Evidentiary Hearing:

Review the [Evidence Research Guide](https://ndcourts.gov/legal-self-help) at ndcourts.gov/legal-self-help. This is a starting point for your research into gathering evidence and presenting evidence at your evidentiary hearing.

Review pretrial and trial guidebooks for self-represented litigants, paralegals and lawyers. Your local public or academic library may have resources available.

Search [ODIN \(Online Dakota Information Network\)](#), a shared library database of many North Dakota academic, public, state agency, and special libraries, for books and other resources that may be available in a North Dakota Library near you. If the book is available for interlibrary loan through ODIN, ask library staff of your local North Dakota library how to request the book.

Review the [Supoenas webpage](#) at ndcourts.gov/legal-self-help. A subpoena is the process to require the attendance of a non-party witness at an evidentiary hearing.

A subpoena is also the process to require a non-party to produce documents, electronically stored information or tangible things; or to require the inspection of premises.

Watch an evidentiary hearing related to the motion. If possible, watch a hearing with the same judge or judicial referee assigned to your case. In general, hearings in civil cases are open to the public.

Identify your Witnesses and Exhibits. Exhibits are all of the documents and objects you plan to offer into evidence at the evidentiary hearing. Witnesses are the people you plan to have testify at the evidentiary hearing.

You may receive a scheduling order from the Court that requires you to exchange your witness and exhibit list with the other parties. Follow the order.

North Dakota Legal Self Help Center staff created this [Witness and Exhibit List](#) for divorce cases. You may find it useful as an example to create your own Witness and Exhibit List.

Prepare an evidentiary hearing notebook. An evidentiary hearing notebook, also referred to as a trial notebook, is a common way lawyers prepare for an evidentiary hearing. The notebook is used to organize documents and outlines to help you effectively present your side in an evidentiary hearing on a motion.

If you decide to use an evidentiary hearing notebook, also referred to as a trial notebook, you can find examples in pretrial and trial guidebooks for self-represented litigants, paralegals, and lawyers.

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Step Four

Attend the Hearing on the Motion.

If the hearing is held in-person, arrive early to the courthouse on the date of the hearing.

Parking may be limited and courthouses have secured entries with metal detectors. Leave enough time to park, get through security, and find the courtroom.

If the hearing is held by Zoom, make sure you can connect to the Zoom hearing. Also, make sure you understand how to function in Zoom.

Don't miss or be late to your hearing. If you have a serious, unavoidable reason you can't attend, or will be late, contact the Clerk of Court's office as soon as possible. Be aware that the judge or judicial referee may decide to hold the hearing without you.

Bring the information, documents, etc. you prepared in Step Three.

- Bring copies of the documents you served and filed for the Motion, and copies of documents the other parties served and filed for the Motion.
- Bring all of the files, paperwork, etc. you gathered and organized while preparing for the hearing.
- Bring the outline of what you want to say.

****Disclaimer: The North Dakota Legal Self Help Center provides resources to people who represent themselves in civil matters in the North Dakota state courts. The information provided by the Center isn't intended for legal advice but only a general guide to the civil court process. The Center isn't responsible for any consequences that may result from the information provided. The information can't replace the advice of a lawyer licensed to practice in North Dakota. Use at your own risk.****

State of North Dakota

In District Court

County of _____

_____ Judicial District

Plaintiff,
vs

Defendant.

Case No. _____

Request for Hearing on Motion to/for

1. I am the (*choose one*) ☐ Moving Party/ ☐ Opposing Party in the Motion.
2. Before a party may request a hearing on the motion, Rule 3.2(a)(3) of the North Dakota Rules of Court requires a brief be timely served and filed. I served the (*choose one*) ☐ Brief in Support of Motion/ ☐ Answer Brief on the other party or parties, as shown by the proof of service on file with the Court. The brief is also filed with the Court.
3. N.D.R.Ct. Rule 3.2(a)(3) requires a request for hearing be made “not later than seven days after expiration of the time for filing the answer brief”. This request is within the deadline.
4. I request (*check ☒ all boxes that apply; you must check at least one box*):
☐ oral arguments
☐ an evidentiary hearing to present evidence
on the motion be scheduled as soon as possible.

Dated _____

(Signature)

(Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)

(Email Address)

State of North Dakota

In District Court

County of _____

_____ Judicial District

vs

Plaintiff,
Defendant.

Case No. _____

Declaration of Service by Mail

(May serve two persons **only if** envelopes are mailed the same day.)

The person serving court documents by mail states:

1. My name is _____ (name of person who mailed documents). I am at least 18 years of age.

2. List of Court Documents Served:

- Request for Hearing on Motion to/for _____.

3. Service by Mail:

I served a true and correct copy of each court document listed in Paragraph 2 by mailing them, enclosed in an envelope, by First-Class mail, postage prepaid, and by depositing them in the United States Mail, directed to the person listed in Paragraph 5 at their last reasonably ascertainable address.

4. Date of Service by Mail:

Date Court Documents Were Served by Mail: _____

5. Persons Served by Mail:

Name of Person Served: _____

Mailing Address: _____

City, State, Zip Code: _____

Name of Person Served: _____

Mailing Address: _____

City, State, Zip Code: _____

6. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration of Service by Mail is true and correct.

Signed on _____ (date) in _____ (city),
_____ (county), _____ (state), _____ (country).

(Signature)

(Printed Name)

(Address) (City, State, Zip Code)

(Telephone Number) (Email Address)

State Of North Dakota

In District Court

County Of _____

_____ Judicial District

Plaintiff,
vs _____
Defendant,

Case No. _____

Notice of Hearing on Motion to/for

To: _____
(List names of parties to receive notice of hearing on the motion)

1. **You Are Hereby Given Notice** that a hearing under Rule 3.2 of the North Dakota Rules of Court (check ☒ the box(es) that match your request for hearing on motion):

☐ for oral arguments

☐ to present evidence (evidentiary hearing)

will be held on the above-named Motion.

2. The hearing will be held before the Honorable (judge or judicial referee name)

_____ presiding, on (date of hearing)

_____, at (time) _____ or as soon thereafter as the

matter may be heard.

(Choose one; Paragraph 2 continues on next page)

☐ The hearing will be held by **Zoom Video Conference**, not at the courthouse. To attend the

hearing (list instructions): _____

☐ The hearing will be held in-person at the _____ County Courthouse

at *(physical address)* _____

Dated _____

(Signature)

(Printed Name)

(Address)

(City, State, Zip Code)

(Telephone Number)

(Email Address)

State of North Dakota

In District Court

County of _____

_____ Judicial District

vs

Plaintiff,
Defendant.

Case No. _____

Declaration of Service by Mail

(May serve two persons **only if** envelopes are mailed the same day.)

The person serving court documents by mail states:

1. My name is _____ (name of person who mailed documents). I am at least 18 years of age.

2. List of Court Documents Served:

- Notice of Hearing on Motion to/for _____.

3. Service by Mail:

I served a true and correct copy of each court document listed in Paragraph 2 by mailing them, enclosed in an envelope, by First-Class mail, postage prepaid, and by depositing them in the United States Mail, directed to the person listed in Paragraph 5 at their last reasonably ascertainable address.

4. Date of Service by Mail:

Date Court Documents Were Served by Mail: _____

5. Persons Served by Mail:

Name of Person Served: _____

Mailing Address: _____

City, State, Zip Code: _____

Name of Person Served: _____

Mailing Address: _____

City, State, Zip Code: _____

6. I declare, under penalty of perjury under the law of North Dakota, that everything I stated in this Declaration of Service by Mail is true and correct.

Signed on _____ (date) in _____ (city),
_____ (county), _____ (state), _____ (country).

(Signature)

(Printed Name)

(Address) (City, State, Zip Code)

(Telephone Number) (Email Address)